

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 HOUSE BILL 3052

By: Stewart

6 AS INTRODUCED

7 An Act relating to children; enacting the Sir Major
8 White-Bullock Child Protection and Family
9 Notification Act; providing findings and purpose;
10 defining terms; requiring the Department of Human
11 Services to initiate certain safety review in certain
12 circumstances; providing information the review shall
13 include; directing the Department to notify certain
14 individuals; providing exception; providing
15 information the notification shall include;
16 prohibiting the Department from withholding
17 notification; providing considerations for the
18 Department; directing the Department to establish a
19 tracking mechanism; directing hospitals and birthing
20 facilities to report certain information to the
21 Department; providing information the court shall
22 receive; permitting the court to order certain
23 evaluation or supervision; directing the Department
24 to promulgate rules; directing the Department to
provide training; providing for codification; and
providing an effective date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 1-11-101 of Title 10A, unless
22 there is created a duplication in numbering, reads as follows:

23 This act shall be known and may be cited as the "Sir Major
24 White-Bullock Child Protection and Family Notification Act".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1-11-102 of Title 10A, unless
3 there is created a duplication in numbering, reads as follows:

4 A. The Oklahoma Legislature finds that:

5 1. Repeated drug-exposed births constitute a foreseeable and
6 preventable risk to infant safety;

7 2. Department of Human Services policies do not consistently
8 trigger enhanced intervention, cross-case review, or family
9 notification when a mother repeatedly gives birth to drug-positive
10 infants;

11 3. The death of Sir Major White-Bullock, an eleven-month-old
12 child who died from fentanyl toxicity after documented repeated
13 prenatal exposure demonstrates a systemic failure, not a single
14 error; and

15 4. Stable family members are often willing and capable of
16 protecting children but are not notified due to procedural silos or
17 narrow interpretations of confidentiality.

18 B. It is the purpose of the Oklahoma Legislature to:

19 1. Close policy gaps that allow repeat prenatal drug exposure
20 without escalated response;

21 2. Require enhanced intervention by the Department for repeat
22 drug-exposed births;

23 3. Ensure qualified, stable family members are notified and
24 engaged as child welfare stakeholders;

1 4. Prioritize child safety while maintaining treatment access
2 and due process for parents; and

3 5. Enhance child safety and early intervention.

4 SECTION 3. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 1-11-103 of Title 10A, unless
6 there is created a duplication in numbering, reads as follows:

7 When used in the Sir Major White-Bullock Child Protection and
8 Family Notification Act, unless the context otherwise requires:

9 1. "Drug-exposed infant" means a newborn who tests positive at
10 birth for a controlled dangerous substance or whose mother tests
11 positive at delivery;

12 2. "Enhanced child safety review" means a mandatory, multi-
13 disciplinary DHS response triggered by repeat prenatal drug
14 exposure.

15 3. "Qualified familial child welfare stakeholder" means a
16 grandparent, adult sibling, aunt, uncle, or other adult relative
17 who:

- 18 a. has no substantiated child abuse or neglect findings,
- 19 b. is willing to participate in safety planning or
- 20 placement, and
- 21 c. may serve as a temporary or permanent caregiver; and

22 4. "Repeat prenatal drug exposure" means two or more drug-
23 exposed births by the same parent within a five-year period;

1 SECTION 4. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1-11-104 of Title 10A, unless
3 there is created a duplication in numbering, reads as follows:

4 A. The Department of Human Services shall initiate an enhanced
5 child safety review when a parent has:

- 6 1. A second drug-exposed infant; or
- 7 2. Any subsequent drug-exposed infant.

8 B. This review shall not be discretionary and shall include:

- 9 1. Case history review across all prior child welfare records;
- 10 2. Assessment of cumulative risk, not isolated incidents; and
- 11 3. Review of prior service compliance and outcomes.

12 SECTION 5. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 1-11-105 of Title 10A, unless
14 there is created a duplication in numbering, reads as follows:

15 A. Upon triggering an enhanced child safety review, the
16 Department of Human Services shall identify and notify qualified
17 familial child welfare stakeholders, unless the court finds
18 notification would pose an immediate safety risk to the child or
19 parent.

20 B. Notification shall include:

- 21 1. The existence of repeat prenatal drug exposure; and
- 22 2. The opportunity to participate in:
 - 23 a. safety planning,
 - 24 b. temporary or kinship placement, and

1 c. case staffing or family team meetings.

2 C. The Department may not withhold notification solely on
3 confidentiality grounds when:

4 1. The child's safety is at risk due to repeat exposure; and

5 2. The notified party is being considered for placement or
6 protective involvement.

7 SECTION 6. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 1-11-106 of Title 10A, unless
9 there is created a duplication in numbering, reads as follows:

10 When repeat prenatal drug exposure is identified, the Department
11 shall consider, at minimum:

12 1. Immediate safety planning prior to hospital discharge;

13 2. Supervised visitation requirements;

14 3. Kinship placement preference over foster placement;

15 4. Court-ordered substance use treatment with compliance
16 monitoring; and

17 5. Referral to specialized maternal addiction treatment
18 programs.

19 SECTION 7. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 1-11-107 of Title 10A, unless
21 there is created a duplication in numbering, reads as follows:

22 A. The Department of Human Services shall establish a repeat
23 prenatal exposure tracking mechanism that:

24 1. Flags repeat cases statewide; and

2. Prevents case isolation across counties or service regions.

B. Hospitals and birthing facilities shall report drug-positive births to the Department in a manner that allows identification of repeat occurrences.

SECTION 8. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-11-108 of Title 10A, unless there is created a duplication in numbering, reads as follows:

A. In cases involving repeat prenatal drug exposure, the court shall:

1. Receive a summary of prior involvement by the Department of Human Services; and

2. Be informed whether family notification occurred and why.

B. In cases involving repeat prenatal drug exposure, the court may order:

1. Immediate kinship placement evaluations; and

2. Expanded protective supervision.

SECTION 9. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-11-109 of Title 10A, unless there is created a duplication in numbering, reads as follows:

Nothing in this act shall:

1. Criminalize pregnancy or substance use disorder;

2. Deny access to reunification services; or

3. Eliminate parental rights without court findings.

1 SECTION 10. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1-11-110 of Title 10A, unless
3 there is created a duplication in numbering, reads as follows:

4 The Department of Human Services shall promulgate rules within
5 one hundred eighty (180) days of enactment and shall provide
6 training to staff of the Department, hospitals, and courts.

7 SECTION 11. This act shall become effective November 1, 2026.

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